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Case Number: 25NNCV05431 Hearing Date: September 18, 2026 Dept: D

TENTATIVE RULING

Calendar: 1

Date: September 18, 2026

Case No: 25NNCV05431 Trial Date: Not yet set

Case Name: Reed v. White Pickle, LLC, et al.

DEMURRER AND MOTION TO STRIKE

[CCP § 430.10 subd. (e)]

Moving Party: Defendants, White Pickle LLC and Adam Grandmaison, erroneously sued as Adam Grandmaison dba No Jumper Podcast

Responding Party: Plaintiff, Jermel Reed

RELIEF REQUESTED:

Sustain demurrer to Second Amended Complaint and strike the claims for punitive damages.

CAUSES OF ACTION: from Second Amended Complaint

1) Premises Liability

2) General Negligence

3) Negligent Hiring, Retention, Supervision, and/or Entrustment

4) Battery

5) Assault

6) Intentional Infliction of Emotional Distress

SUMMARY OF FACTS:

The Second Amended Complaint ("FAC") alleges that on December 26, 2024, Jermel Reed ("Plaintiff") was lawfully present at the subject premises located at 2508 N. Ontario St., Burbank, CA for a business meeting with defendants Termaine Williams ("Williams"), Cash Jones ("Jones"), and Adam Grandmaison ("Grandmaison"). Grandmaison is the principal, owner, operator, manager, alter ego, and/or controlling person of White Pickle, LLC ("WP") and the No Jumper business premises and operations. Plaintiff alleges that while he was engaged in conversation with Jones and Williams about their contemplated business deal, Williams suddenly and violently struck Plaintiff in the face.

DEMURRER:

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212, superseded by statute as stated in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Procedural Issues

As an initial matter, the Court notes that Defendants filed a single joint opposition addressing both the instant demurrer and the demurrer filed in the related action, *Siler v. White Pickle, LLC, et al.* (LASC case no: 25NNCV06763.) The opposition was only filed in the *Siler* action, and not in the instant case. Accordingly, no opposition was technically filed to the instant demurrer. Although the two actions have been deemed related and arise from the same incident, they involve distinct plaintiffs, different allegations and separate complaints asserting different causes of action. The related designation does not consolidate the actions or otherwise permit the parties to treat filings in one action as filings in the other. As this is the first occurrence, the Court will consider the opposition in connection with the instant demurrer. Defendants are admonished that, going forward, filings must be separately and properly filed in each action to which they pertain.

First Cause of Action, Premises Liability

The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) Unlike the elements of breach, causation, and injury, all of which are fact-specific issues for the trier of fact, the existence and scope of duty are questions of law. (*Id.* at pp. 1142, 1144.)

California law requires landowners to maintain land in their possession and control in a reasonably safe condition. (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 674 [disapproved on other grounds in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 527, fn. 5].) Moreover, “foreseeability is a ‘crucial factor’ in determining the existence and scope of a legal duty.” (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 237, citing *Ann M.*, supra, 6 Cal.4th at pp. 674, 676.)

The Demurring Defendants, WP and Grandmaison, demur to the premises liability cause of action on grounds that: (i) they owed no legal duty to prevent third party criminal conduct; (ii) the SAC alleges neither misfeasance nor any special relationship that could create a legal duty; (iii) the SAC alleges no specific facts establishing the “extraordinarily high degree of foreseeability” required to hold WP and Grandmaison liable for third-party criminal acts; and (iv) the SAC fails to allege any defective, unsafe, or hazardous condition.

When analyzing duty in the context of third-party acts, as in cases of misfeasance or when a special relationship exists, “the court considers the foreseeability of risk from the third party conduct.” (*Melton v. Boustred* (2010) 183 Cal.App.4th 521, 532.) Generally, “a duty to take affirmative action to control the wrongful acts of a third party will be imposed only where such conduct can be reasonably anticipated.” (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 676, disapproved on other grounds in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 527, fn. 5.) And “in the case of criminal conduct by a third party, an extraordinarily high degree of foreseeability is required to impose a duty on the landowner, in part because ‘it is difficult if not impossible in today’s society to predict when a criminal might strike.’” (*Garcia v. Paramount Citrus Assn., Inc.* (2008) 164 Cal.App.4th 1448, 1457, quoting *Wiener v. Southcoast Childcare Centers, Inc.* (2004) 32 Cal.4th 1138, 1150.)

“Misfeasance exists when the defendant is responsible for making the plaintiff’s position worse, i.e., defendant has created a risk.” (*Weirum v. RKO General, Inc.* (1975) 15 Cal.3d 40, 49.) A legal duty may arise from affirmative acts “where the defendant, through his or her own action (misfeasance) has made the plaintiff’s position worse and has created a foreseeable risk of harm from the third person. In such cases the question of duty is governed by the standards of ordinary care.” (*Pamela L. v. Farmer* (1980) 112 Cal.App.3d 206, 209; *Weirum*, supra, 15 Cal.3d at p. 49.)

Here, the SAC alleges that “White Pickle and Grandmaison arranged, approved, authorized, facilitated, and/or knowingly permitted the meeting that brought Plaintiff to the premises for their business benefit.” (SAC, ¶ 24.) The SAC alleges that “White Pickle and Grandmaison had the right, ability, and authority to control access to the premises, approve or disapprove meetings and gatherings there, regulate who was invited onto the property for business purposes, and supervise security, crowd management, and guest conduct at the premises.” (SAC, ¶ 26.) The SAC alleges that “Defendants knew or should have known that bringing Plaintiff into that environment for a business meeting with Jones and Williams created a foreseeable and unreasonable risk of harm, particularly given the nature of the premises, the personalities involved, and the lack of reasonable protective measures.” (SAC, ¶ 28.) Lastly, the SAC alleges that “Defendants knew or should have known that invitees brought to the premises for business discussions could be exposed to sudden violence in the absence of proper supervision, security, access control, and separation of hostile or volatile individuals.” (SAC, ¶ 36.)

These assertions are insufficient to allege a legal duty owed by WP or Grandmaison under the circumstances. Even accepting Plaintiff’s allegations as true, the SAC does not allege any facts demonstrating that WP or Grandmaison knew, or should have known, that inviting Plaintiff, Jones and Williams would result in Williams assaulting Plaintiff. There are no allegations that WP or Grandmaison took any actions to stimulate criminal conduct. There is nothing inherently risky about hosting a business meeting at a podcast studio. There are no allegations or inferences that violence was a necessary component of the meeting or that WP or Grandmaison encouraged the attack. There are no allegations that WP or Grandmaison ordered Williams to commit the assault or were in any way involved in the attack. Rather, based on the allegations in the SAC, Plaintiff’s theory of liability is that Plaintiff, Jones and Williams were all invitees at property owned or controlled by WP and Grandmaison, that Jones and Williams were volatile individuals, and that WP and Grandmaison did not have adequate security measures in place. Such allegations do not constitute misfeasance.

Thus, Plaintiff has not alleged facts demonstrating that WP or Grandmaison owed a duty of care to protect Plaintiff from third-party criminal conduct.

In the opposition, Plaintiff asserts that the police report for the incident “identifies Jones and Williams as persons with gang affiliations and describes defendant, Williams as associated with the Eight Tray Gangster Crips and Rollin’ 60s Neighborhood Crips. The report also states that Grandmaison hosted numerous admitted Blood and Crip gang members on No Jumper, some of whom became violent against Grandmaison or other people present at the podcast studio during interviews.” (Opp., p. 8:11-15.) These allegations, however, are not contained in the SAC, and the Court therefore cannot consider them in ruling on the demurrer. Nevertheless, Plaintiff has demonstrated a manner in which the SAC can be amended that could change the legal effect of the pleading.

Accordingly, the demurrer to the first cause of action is SUSTAINED.

Second Cause of Action, General Negligence

The necessary elements for negligence are: (1) that the defendant owed a legal duty to the plaintiff to use due care; (2) a breach of that duty; (3) causation; and (4) damages to the plaintiff. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.)

For the same reasons as discussed above, the Court finds that Plaintiff has not sufficiently alleged that WP or Grandmaison owed a duty of care under the circumstances here.

The demurrer to the second cause of action is SUSTAINED.

Third Cause of Action, Negligent Hiring/Retention/ Supervision

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th 828, 836-837.)

The SAC alleges that a few months before the alleged assault, “Plaintiff met with Jones and Williams at a hotel restaurant to discuss business opportunities relating to the proposed show, related media ventures, and the parties’ anticipated working relationship.” (SAC, ¶ 13.) The SAC alleges that “During that hotel meeting, Jones spoke on behalf of both himself and Grandmaison concerning the contemplated business relationship, the proposed show, and the parties’ anticipated collaboration.” (SAC, ¶ 14.) Lastly, the SAC alleges that “Jones’s participation in those discussions and his speaking on Grandmaison’s behalf were consistent with Jones’s business association with Grandmaison through “The Adam & Wack Show,” which was associated with No Jumper and its related media operations.” (SAC, ¶ 15.)

While these allegations suggest a business association between the parties, they do not allege an employee-employer relationship between Grandmaison and Jones. The SAC does not allege that Jones is an employee of Grandmaison or that Jones was acting under Grandmaison’s employment, direction, control or authorization. Accordingly, the SAC does not allege facts sufficient to support a claim against Grandmaison for negligently hiring, retaining or supervising Jones.

Thus, the demurrer to the third cause of action is SUSTAINED.

Sixth Cause of Action, Intentional Infliction of Emotional Distress

"The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

WP and Grandmaison demur to the sixth cause of action on the basis that Plaintiff amended the FAC to add the claim without leave of the Court. The Court agrees that adding the emotional distress was beyond the scope of the Court's order granting leave to amend the FAC. Sustaining the demurrer to the FAC with leave to amend granted Plaintiff leave to amend only the causes of action in the FAC, not leave to add an entirely new cause of action. (Patrick v. Alacer Corp. (2008) 167 Cal.App.4th 995, 1015.) "Following an order sustaining a demurrer or a motion for judgment on the pleadings with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court's order. The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend." (Zakk v. Diesel (2019) 33 Cal.App.5th 431, 456 [quoting Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023].)

Moreover, Plaintiff does not address this argument or this cause of action in the opposition.

Thus, the demurrer to the sixth cause of action is SUSTAINED.

MOTION TO STRIKE:

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP § 436, subds. (a), (b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

Because the Court has sustained the Demurrer in its entirety, the motion to strike is MOOT.

RULING:

Defendants White Pickle LLC and Adam Grandmaison's Demurrer is SUSTAINED, with 15 days leave to amend.

The motion to strike is MOOT.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.